

The Union and its Territory; Citizenship

Articles 1 to 11, Reorganisation of States, and the Citizenship Act 1955

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NOTE · HOW TO USE THIS DOCUMENT

Priority ★★☆☆☆ · Study time 45 minutes · Difficulty Easy. This is deliberately the shortest chapter in Module 1. Read it once, then revise only Sections 6 and 7. Do not give this chapter a second reading until every ★★★★★ chapter is secure.

Priority ratings and study times are the author's Analytical Estimates for planning purposes, not official UPSC weightage.

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1. An Honest Warning Before You Start

This chapter is worth 45 minutes and not one minute more. I am telling you that up front because the standard Polity textbook gives citizenship twenty pages, and following it would cost you two hours for a topic that the APFC paper has not touched.

PYQ-DERIVED. Across the two APFC papers I classified question by question, **neither the 2015 nor the 2023 paper contained a single question on Articles 1 to 11** - not on the formation of States, not on citizenship. The reported 2025 Polity topics (Supreme Court and High Courts, Parliament, Uniform Civil Code, National e-Vidhaan, Chief Information Commissioner, Union and Concurrent Lists, RTI, Chief Justice of India) contain nothing from this chapter either.

OPTIONAL READING · SO WHY IS THE CHAPTER HERE AT ALL?

Three reasons, and they are modest ones:

- 1 **Article 1 to 4 is the vocabulary** of Centre-State relations, which *is* high yield (Chapter 1.8). You cannot discuss the Seventh Schedule without knowing what a "State" and a "Union Territory" are.
 - 2 **Citizenship has one real APFC hook** - EPF coverage of *International Workers* has nothing to do with citizenship, and knowing why is genuinely useful in Module 3 and in the Interview. See Section 5.
 - 3 **Absence from two papers is weak evidence.** With only two reliable papers, a topic can be missed by chance. Forty-five minutes buys insurance against a 2.5-mark surprise.
- If your study time collapses, **this is the first chapter in Module 1 to sacrifice.**

2. Articles 1 to 4: The Territory of India ★★☆☆☆

Q. What is the difference between the "Union of India" and the "territory of India"?

Ans. The **Union of India** covers only the **States**, which share sovereign power with the Centre. The **territory of India** is wider - it includes the States, all Union Territories, and any territory India may acquire in future.

This is the only genuinely examinable distinction in Part I. Union Territories are administered by the Centre; they are part of the territory but not of the federal Union.

Article	Subject	What you must know
1	Name and territory	"India, that is Bharat, shall be a Union of States ." Territory = States + Union Territories + territories that may be acquired
2	Admission or establishment of new States	Parliament may admit or establish new States - i.e. territories not already part of India
3	Formation of new States, alteration of areas, boundaries or names	Deals with existing territory. Bill needs the President's prior recommendation ; the President must refer it to the State legislature for its views
4	Consequential changes	Laws under Articles 2 and 3 may amend the First and Fourth Schedules , and are not treated as constitutional amendments under Article 368

MUST MASTER · THE SINGLE MOST TESTED IDEA IN PART I

Under Article 3, the President must refer the Bill to the affected State legislature - but the State legislature's **view is NOT binding**, and Parliament is **not obliged to wait beyond the specified period**. A State can therefore be divided, renamed or reduced **against its own wishes**, by a **simple majority** of Parliament.

This is the sharpest illustration of India's **unitary bias**: no State has a guaranteed territorial existence. Compare the USA, where no state can be divided without its consent.

COMMON UPSC TRAP · ARTICLE 2 VERSUS ARTICLE 3

- **Article 2** = territory from **outside** India (admission or establishment of new States)
- **Article 3** = rearranging territory **already inside** India

Mnemonic: **2 = Outside, 3 = Inside**. UPSC swaps them routinely.

KNOW · CEDING TERRITORY TO A FOREIGN COUNTRY

India **cannot cede** territory to a foreign State by ordinary law. Following the **Berubari Union case (1960)**, that requires a **constitutional amendment** under Article 368. However, **merely settling a boundary dispute** does not - an executive act suffices.

2.1 Reorganisation of States - the eight facts worth knowing

★★☆☆☆

- 1 **Dhar Commission (1948)** and the **JVP Committee (1949)** - Jawaharlal Nehru, Vallabhbhai Patel, Pattabhi Sitaramayya - both **rejected** language as the sole basis for reorganisation
- 2 **Andhra (1953)** became the first State created on a **linguistic basis**, after the death of **Potti Sriramulu**
- 3 **Fazl Ali Commission** - the States Reorganisation Commission, appointed 1953, reported 1955; it accepted language as a basis but rejected "one language, one State"
- 4 **States Reorganisation Act, 1956** with the **7th Constitutional Amendment Act, 1956** produced **14 States and 6 Union Territories**
- 5 **Telangana (2014)** was the 29th State
- 6 **Jammu and Kashmir (2019)** was reorganised into **two Union Territories** - J&K **with** a legislature, Ladakh **without**
- 7 **Dadra and Nagar Haveli and Daman and Diu** were merged into a single Union Territory in **2020**
- 8 Present position: **28 States and 8 Union Territories**

3. Articles 5 to 11: Citizenship at Commencement



Q. Why does the Constitution deal with citizenship in only seven articles and then hand the subject to Parliament?

Ans. Because Articles 5 to 11 answer a **one-time question** - who was a citizen on **26 January 1950**, in the immediate aftermath of Partition. All future citizenship was deliberately left to ordinary legislation under **Article 11**.

Article	Provision
5	Citizenship at commencement: domicile in India plus either birth in India, or either parent born in India, or ordinary residence for 5 years immediately before commencement
6	Rights of citizenship of persons who migrated from Pakistan to India
7	Rights of citizenship of persons who migrated to Pakistan and later returned
8	Citizenship of persons of Indian origin residing outside India
9	A person voluntarily acquiring foreign citizenship shall not be an Indian citizen
10	Continuance of the rights of citizenship
11	Parliament may regulate the right of citizenship by law → the Citizenship Act, 1955

KNOW · RECALL FROM CHAPTER 1.1

The citizenship provisions were among the few that came into force on **26 November 1949**, not on 26 January 1950 - because the country needed to know who its citizens were before it could hold elections.

4. The Citizenship Act, 1955 ★★☆☆☆

4.1 Five ways to acquire citizenship

Q. What are the modes of acquiring Indian citizenship?

Ans. Five: **birth, descent, registration, naturalisation, and incorporation of territory.**

Mode	Essentials
Birth (Sec 3)	Born in India on or after 26 Jan 1950 but before 1 July 1987 - citizen regardless of parents' nationality. On or after 1 July 1987 but before 3 Dec 2004 - either parent must be a citizen. On or after 3 Dec 2004 - both parents citizens, or one parent a citizen and the other not an illegal migrant
Descent (Sec 4)	Born outside India. Before 10 Dec 1992 - father a citizen. On or after 10 Dec 1992 - either parent a citizen. On or after 3 Dec 2004 - birth must be registered at an Indian consulate within one year
Registration (Sec 5)	For specified categories, including persons of Indian origin resident in India, and spouses of Indian citizens
Naturalisation (Sec 6)	For a foreigner. Ordinarily resident in India for 12 months immediately preceding the application, and during the 14 years before those 12 months, resident or in Government service for at least 11 years . The Government may waive the conditions for distinguished service in science, philosophy, art, literature, world peace or human progress
Incorporation of territory (Sec 7)	When new territory becomes part of India, the Government specifies who becomes a citizen

4.2 Three ways to lose it

Mode	Essentials
Renunciation (Sec 8)	Voluntary. A minor child also loses citizenship, but may resume it on attaining majority
Termination (Sec 9)	Automatic , on voluntarily acquiring the citizenship of another country
Deprivation (Sec 10)	Compulsory , by order of the Central Government - for obtaining citizenship by fraud, disloyalty, unlawfully trading with an enemy in wartime, imprisonment for 2 years within 5 years of registration or naturalisation, or continuous residence abroad for 7 years

COMMON UPSC TRAP · TERMINATION VERSUS DEPRIVATION

Termination is automatic and happens by the citizen's own act. **Deprivation is a punitive order** made by the Central Government. Confusing the two - or attributing termination to a Government order - is the standard trap here.

4.3 Single citizenship, OCI, and the 2019 amendment ★★☆☆☆

- 1 India has **single citizenship** - there is no separate State citizenship, unlike the USA. This was a deliberate choice to strengthen national unity.
- 2 India does **not permit dual citizenship**.
- 3 **Overseas Citizen of India (OCI)** cardholders are **not citizens**. The scheme began in 2005; the older **PIO** card scheme was **merged into OCI in 2015**. OCI holders have no voting rights, cannot hold constitutional office, and cannot be appointed to public services.
- 4 The **Citizenship (Amendment) Act, 2019** provided that **Hindus, Sikhs, Buddhists, Jains, Parsis and Christians** from **Afghanistan, Bangladesh and Pakistan** who entered India **on or before 31 December 2014** shall not be treated as illegal migrants, and reduced their qualifying residence for naturalisation from **11 years to 5 years**. The Rules were notified in **2024**.

5. The APFC Connection ★★★★★

This is the only part of the chapter with direct professional value, and it is worth understanding properly because it is exactly the kind of thing an interview board asks.

Q. Does a person have to be an Indian citizen to be covered by the Employees' Provident Fund?

Ans. No. EPF coverage turns on **employment in a covered establishment in India**, not on nationality. A foreign national working for an Indian establishment is covered as an **"International Worker"**.

MUST MASTER · WHY THIS MATTERS, AND THE MECHANISM

Because citizenship is irrelevant to EPF liability, India signs **Social Security Agreements (SSAs)** with other countries to prevent **double contribution** - an employee otherwise pays into two national schemes for the same period of work.

Under an SSA, a worker posted abroad obtains a **Certificate of Coverage (COC)** from EPFO, which exempts them from contributing to the host country's scheme while they remain covered in India. SSAs also provide for **totalisation** of contribution periods and **exportability** of benefits.

Detail comes in Module 3. What you need from *this* chapter is only the principle: **EPF coverage follows employment, not citizenship.**

THINK LIKE UPSC

The examinable distinction is between a right that depends on **citizenship** and a right that depends on **being a person within India's territory**. Article 19 rights - including the right to form trade unions - are available **only to citizens**. Statutory social security under the EPF Act is available to **employees**, citizen or not.

So a foreign national working in Mumbai **is** an EPF member but **cannot** claim Article 19(1)(c) as a constitutional right. That is a clean, testable line, and it is the reason this chapter earns its 45 minutes.

6. Practice MCQs

Q. 1. Under the Constitution, the power to admit or establish new States that are not already part of India lies in

(a) Article 1 (b) Article 2 (c) Article 3 (d) Article 4

Q. 2. Which of the following statements about Article 3 is correct?

(a) The consent of the affected State legislature is mandatory (b) A special majority of Parliament is required (c) The views of the State legislature must be sought but are not binding (d) The Bill may be introduced without the President's recommendation

Q. 3. A law made under Article 3 that alters the First Schedule

(a) requires ratification by half the States (b) is deemed a constitutional amendment under Article 368 (c) is **not** deemed a constitutional amendment (d) requires the President's assent by referendum

Q. 4. Consider the following statements:

- The Fazl Ali Commission accepted language as a basis of reorganisation but rejected "one language, one State".
- The JVP Committee recommended linguistic reorganisation of States.

Which of the above is/are correct? (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

Q. 5. Citizenship by termination under Section 9 of the Citizenship Act, 1955 occurs

(a) by an order of the Central Government for disloyalty (b) automatically, on voluntarily acquiring the citizenship of another country (c) on continuous residence abroad for seven years (d) on renunciation by a declaration

Q. 6. A child born outside India on or after 3 December 2004 can acquire Indian citizenship by descent only if

(a) the father is a citizen at the time of birth (b) either parent is a citizen, with no further condition (c) the birth is registered at an Indian consulate within one year (d) the child returns to India within five years

Q. 7. Which one of the following is true of an Overseas Citizen of India cardholder?

(a) The holder is an Indian citizen with restricted rights (b) The holder may vote but not contest elections (c) The holder is not an Indian citizen and cannot vote (d) The holder enjoys dual citizenship

Q. 8. A German national employed by a covered establishment in Pune is

(a) outside the EPF Act because he is not an Indian citizen (b) covered under the EPF Act as an International Worker (c) covered only if a Social Security Agreement exists (d) covered only after five years of residence

7. Answers and Explanations

Q	Ans	Explanation
1	b	Article 2 deals with territory from outside India; Article 3 rearranges territory already inside
2	c	The President must refer the Bill to the State legislature, but its view does not bind Parliament, and only a simple majority is needed
3	c	Article 4 expressly provides that such laws are not constitutional amendments under Article 368

Q	Ans	Explanation
4	a	Statement 2 is wrong - the JVP Committee (1949) rejected language as the sole basis. So did the Dhar Commission
5	b	Termination is automatic on voluntarily acquiring foreign citizenship. Option (a) and (c) describe deprivation ; (d) describes renunciation
6	c	For births on or after 3 Dec 2004, registration at an Indian consulate within one year is essential - a parent being a citizen is not by itself sufficient
7	c	An OCI cardholder is not a citizen, has no voting rights , cannot hold constitutional office, and India does not allow dual citizenship
8	b	EPF coverage follows employment in a covered establishment , not nationality. An SSA does not create coverage - it prevents double contribution , so (c) inverts the logic

THINK LIKE UPSC · WHAT QUESTION 8 WAS REALLY TESTING

Option (c) is the attractive wrong answer, because it sounds technical and mentions a real instrument. The trap is a **reversal of cause and effect**: the SSA does not *create* liability, it *relieves* duplicate liability. Watch for options that name a genuine mechanism but invert what it does - this construction recurs throughout the labour and social security block.

8. One-Minute Revision

ONE-MINUTE REVISION

Article 1 India = **Union of States**; territory = States + UTs + acquired territory. **Article 2** = new States from **outside**. **Article 3** = rearranging **inside** - President's prior recommendation, State legislature's views **sought but not binding, simple majority**. **Article 4** - such laws are **not** Article 368 amendments; amend First and Fourth Schedules.

Ceding territory to a foreign State needs a **constitutional amendment** (*Berubari*, 1960); settling a boundary dispute does not.

Dhar Commission and **JVP Committee rejected** language as sole basis. **Andhra 1953** first linguistic State (Potti Sriramulu). **Fazl Ali Commission 1953-55**. **States Reorganisation Act 1956 + 7th Amendment → 14 States, 6 UTs**. Telangana 2014 = 29th State. J&K reorganised 2019. Now **28 States, 8 UTs**.

Articles 5-11 settle citizenship as on 26 Jan 1950 only; **Article 11** hands the subject to Parliament → **Citizenship Act, 1955**.

Acquisition: **birth, descent, registration, naturalisation, incorporation of territory**. Birth cut-offs **1 July 1987** and **3 Dec 2004**. Descent after 3 Dec 2004 needs **consular registration within one year**. Naturalisation: **12 months plus 11 of the preceding 14 years**.

Loss: **renunciation** (voluntary), **termination** (automatic on acquiring foreign citizenship), **deprivation** (Government order; includes **7 years** continuous residence abroad).

Single citizenship; no dual citizenship; **OCI holders are not citizens** and cannot vote; PIO merged into OCI in **2015**. **CAA 2019** - six communities from Afghanistan, Bangladesh, Pakistan entering on or before **31 Dec 2014**; naturalisation residence cut from 11 to **5 years**; Rules notified **2024**.

APFC hook: EPF coverage follows **employment, not citizenship** - foreign nationals are **International Workers**; **SSAs** prevent double contribution via a **Certificate of Coverage**, with totalisation and exportability of benefits.

9. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET

ARTICLES 1 Union of States · **2 outside** · **3 inside** · 4 not an amendment

ARTICLE 3 TEST President's recommendation → refer to State legislature → **views not binding** → **simple majority**

NUMBERS 5 years residence under Art 5 · 1 July 1987 · 3 Dec 2004 · 10 Dec 1992 · 12 months + 11 of 14 years · 7 years abroad · 31 Dec 2014 · 28 States, 8 UTs · 1956 = 14 States, 6 UTs

COMMISSIONS Dhar 1948 and JVP 1949 **rejected** language · Andhra 1953 first linguistic State · Fazl Ali 1953-55 · SR Act + 7th Amendment 1956

LOSS Renunciation voluntary · **Termination automatic** · **Deprivation by order**

APFC EPF follows **employment, not citizenship** · International Workers · SSA → Certificate of Coverage → no double contribution · Article 19 rights are **citizens only**

ACTION · NEXT IN MODULE 1

Chapter 1.3 - Fundamental Rights, the writs, and Articles 23 and 24 ★★★★★. That chapter is the opposite of this one: it is where Polity stops being background and starts producing marks directly, including two questions the 2023 paper actually asked.